



Code: IGAEB
Adopted: 7/21/21

Drug, Alcohol and Tobacco Prevention, Health Education**

Students have a right to attend school in an environment conducive to learning. HCCS will not tolerate the possession, selling or use of unlawful and harmful drugs (illicit drugs, nontherapeutic uses of prescribed drugs, misuse of solvents and other dangerous substances) alcohol or tobacco in the schools, on school grounds or during school-sponsored activities including athletic events, dances, field trips, etc.

After consulting with staff, parents and students, through such groups as community agencies and representatives from drug, alcohol or health service agencies, the Board will adopt a written plan for a drug, alcohol and tobacco prevention and intervention program.

Drug Prevention Program

Each classroom K-8 shall receive drug, alcohol and tobacco prevention instruction as part of the health education program.

HCCS is committed to an aggressive intervention and referral program to eliminate prohibited drug, alcohol and tobacco use.

The program shall include training for staff and a compilation of information on school and community resources and procedures for responding to drug-related medical emergencies.

Parents, students and staff shall annually receive information and detailed procedures regarding the public charter school's intervention/referral program through the school's family handbook and the staff handbook published by the school.

Each year students and parents shall receive a code of conduct explaining expected behaviors and related consequences for violations of the code of conduct which may include discipline up to and including expulsion. Students violating the code of conduct prohibiting substance abuse, possessing, selling and/or using unlawful drugs or alcohol may be subject to an assessment and, if appropriate, referred to law enforcement officials. When considering disciplinary action for a child with disabilities, the public charter school must follow the requirements of Board policy JGDA – Discipline of Students with Disabilities including those involving functional behavioral assessment, change or placement, manifestation determination and an interim alternative educational setting.

HCCS will seek funds to support the activities identified in the public charter school's drug, alcohol and tobacco prevention program.

The administrator/principal shall provide staff development activities for all employees addressing the school's drug, alcohol and tobacco prevention and intervention program or plan, the employee's responsibilities within the program or plan and current drug, alcohol and tobacco information.

HCCS will develop a public information plan for students, staff and parents.

HCCS's Drug, Alcohol and Tobacco Prevention, Health Education plan, related policies, rules and procedures will be reviewed annually and updated, as needed.

END OF POLICY

Legal Reference(s):

<u>ORS 163.575</u>	<u>OAR 581-015-2060</u>	<u>OAR 581-015-2420</u>
<u>ORS 336.067</u>	<u>OAR 581-015-2070</u>	<u>OAR 581-015-2425</u>
<u>ORS 336.222</u>	<u>OAR 581-015-2075</u>	<u>OAR 581-015-2430</u>
<u>ORS 339.873</u>	<u>OAR 581-015-2205</u>	<u>OAR 581-015-2435</u>
<u>ORS Chapter 475</u>	<u>OAR 581-015-2220</u>	<u>OAR 581-015-2440</u>
	<u>OAR 581-015-2225</u>	<u>OAR 581-015-2600</u>
<u>OAR 581-011-0052</u>	<u>OAR 581-015-2230</u>	<u>OAR 581-015-2605</u>
<u>OAR 581-015-2000</u>	<u>OAR 581-015-2235</u>	<u>OAR 581-021-0050</u>
<u>OAR 581-015-2040</u>	<u>OAR 581-015-2240</u>	<u>OAR 581-021-0055</u>
<u>OAR 581-015-2045</u>	<u>OAR 581-015-2325</u>	<u>OAR 581-022-2030</u>
<u>OAR 581-015-2050</u>	<u>OAR 581-015-2410</u>	<u>OAR 581-022-2045</u>
<u>OAR 581-015-2055</u>	<u>OAR 581-015-2415</u>	

Drug-Free Workplace Act of 1988, 41 U.S.C. §§ 8101-8106 (2012); General Principles Relating to Suspension and Debarment Actions, 34 C.F.R. §§ 84.100-84.670; 86.1-86.7 (2017).
Controlled Substances Act, 21 U.S.C. § 812 (2012); Schedules of Controlled Substances, 21 C.F.R. §§ 1308.11-1308.15 (2017).
Safe and Drug-Free Schools and Communities Act, 20 U.S.C. §§ 7101-7117 (2012).
34 C.F.R. §§ 300.108.

Cross Reference(s):

GBEC - Drug-Free Workplace